

		Plaintiff seeks to compel further responses to the Special Interrogatories, arguing that Defendant's initial and supplemental responses contain waived objections and improperly rewrite, renumber, or reframe the interrogatories actually served. Defendant failed to serve timely initial responses. Thus, any objections have been waived. (Code Civ. Proc., § 2030.290(a).) The fact that Defendant's initial and supplemental responses contain objections alone warrants further responses. The Court finds sanctions to be warranted pursuant to Code of Civil Procedure section 2030.290(c). In light of the above, the Motion to Compel Further is GRANTED. Defendant is ORDERED to serve further, verified responses without objections to Plaintiff's first set of Special Interrogatories within 15 days. Defendant is further ORDERED to pay sanctions in the amount of \$2,000 within 30 days. <i>Moving party to give notice.</i>
102	Chan vs. BrandRep LLC, 25-01532021	<i>Off-Calendar.</i>
103	Weaver vs. Architectural, Inc., 23-01316480	Defendants, Sebastian Ernesto Amighini and Karina Andrea Cuevas (collectively, "Defendants"), move for an order to set aside the entries of default and any default judgments as void for lack of personal jurisdiction due to absence of valid service. Defendants contend that the Court never acquired personal jurisdiction over them and that the defaults and default judgment are void for lack of proper service under Code of Civil Procedure section 473(d) as Plaintiffs failed to satisfy the reasonable diligence requirements in the Hague Convention Article 1 and Code of Civil Procedure section 415.50, such that service by publication was not proper on Defendants who resided in Argentina and Defendants were not served in accordance with California law or the Hague Evidence Convention. Plaintiffs, Greg Weaver and Haig Youredjian (collectively, "Plaintiffs") contend that Defendants were properly served with the summons by publication and that the entries of

default and default judgment against Defendants are not void for lack of personal jurisdiction due to lack of service as Defendants fail to establish that service under the Hague Service Convention was required, while Plaintiffs have affirmatively established their reasonable diligence in attempting to locate current service addresses for Defendants and their absence of a known service address during the service period.

On October 14, 2025, default was entered as to Defendant, Karina Andrea Cuevas (ROA 223) and as to Defendant, Sebastian Ernesto Amighini (ROA 224).

Default judgment was entered against Defendants, amongst other defendants, jointly and severally, on January 22, 2026. (ROA 261.)

Defendants' motion to set aside and/or vacate defaults and default judgment is GRANTED.

Plaintiffs' Request for Judicial Notice

Plaintiffs' request that the court take judicial notice of Plaintiffs' Application and Order for Publication of Summons to permit service by publication on Defendants (Exs. A and B), the Court's Order granting Plaintiffs' Application and Order for Publication of Summons to permit service by publication on Defendants (Exs. C and D), and Architectural, Inc.'s Voluntary Petition for Non-Individuals Chapter 7 Bankruptcy in the United States Bankruptcy Court, Central District of California, Santa Ana Division, filed on or around September 10, 2024 (Ex. E).

Plaintiffs' request for judicial notice is GRANTED pursuant to Evidence Code section 452(d), but the Court declines to take judicial notice of the truth of hearsay statements therein.

Plaintiffs' Objections

Evidentiary Objections to the Declaration of Sebastian Ernesto Amighini

The Court OVERRULES Objections Nos. 1-5, 7-11.

The Court SUSTAINS Objection Nos. 6, 12.

Evidentiary Objections to the Declaration of Karina Andrea Cuevas

		The Court OVERRULES Objections Nos. 1-8. <i>Plaintiff to give notice.</i>
104	CARDCONNECT, LLC vs. SHIELDS, 20-01150194	Defendant Jeffrey S. Benice (“Defendant”) moves to dismiss the First Amended Complaint of Plaintiff CardConnect, LLC (“Plaintiff”) pursuant to Code of Civil Procedure sections 583.310 and 583.360. Defendant argues Plaintiff has failed to bring this action to trial within five years since its commencement. Defendant contends that the stay imposed upon receipt of Plaintiff’s Notice of Stay of Proceedings Re: Bankruptcy does not toll the five-year period because Plaintiff was obligated to exercise reasonable diligence in requesting that the stay be lifted as to the defendants who had not filed the bankruptcy petition, and was advised on May 23, 2024 that a motion to list the stay could be filed, and Plaintiff failed to act. “An action shall be brought to trial within five years after the action is commenced against the defendant.” (Code Civ. Proc., § 583.310.) “As to a defendant either expressly named in the original complaint, or named in the original complaint by a fictitious name, the action commences on the date of the filing of the complaint. [Citation.] But when a new party is added to the action, the action commences as to that party on the date of the order adding him or her as a party or on the date of filing of the pleading naming him or her as a new party.” (<i>Gray v. Firthe</i> (1987) 194 Cal.App.3d 202, 209; <i>see also Seto v. Szeto</i> (2022) 86 Cal.App.5th 76, 95, fn. 5 [“The five-year period is calculated separately for each defendant.”].) Defendant cites to <i>Rosefield Packing Co. v. Superior Court</i> (1935) 4 Cal.2d 120 to argue that the five-year period runs from Plaintiff’s filing of the initial complaint rather than the first amended complaint. In <i>Rosefield</i>, the California Supreme Court held that, despite the filing of an amended complaint by stipulation of the parties, the five-year time period ran from when the original complaint was filed. (Id. at pp. 124-125.) The Court did not consider whether a new five year period is triggered if an amended complaint adds a new defendant. Thus, <i>Rosefield</i> cannot stand for the proposition that an amended complaint which adds a new defendant does not trigger a new five year period as to